

DELAP WARES INC.

GDPR COMPLIANCE POLICY (FINAL VERSION)

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Approved by: Executive Management Board

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1. Purpose & Scope

Purpose

This policy establishes DELAP WARES INC.'s full compliance with the **General Data Protection Regulation (GDPR) (EU) 2016/679**. It defines the procedures, responsibilities, and controls for handling personal data belonging to customers, employees, and partners.

DELAP WARES INC. is committed to:

Safeguarding the privacy of all individuals whose data we process.

Maintaining transparency, fairness, and lawfulness in all data processing operations.

Building and sustaining customer trust through responsible data governance.

Scope

This policy applies to:

All **DELAP WARES INC.** employees across departments (Customer Support, Sales, Marketing, HR, Logistics, Security, Legal, Finance, Operations).

All **contractors, vendors, and third-party processors** handling personal data on behalf of the company.

Notably includes **A PAYDAY TECH – Payment Platform** and other authorized service providers.

All personnel must comply with the principles and requirements outlined in this document and in the GDPR.

2. Data Protection Principles — Detailed Explanation

Lawfulness, Fairness, and Transparency

All personal data must be processed lawfully, fairly, and transparently.

Maintain clear records of lawful bases for processing (ROPA).

Communicate data collection purposes through transparent privacy notices.

Record and manage user consent appropriately.

Conduct **Legitimate Interest Assessments (LIAs)** where necessary.

Purpose Limitation

Data must only be used for **specific, explicit, and legitimate purposes**.

Define and document all processing purposes.

Seek renewed consent or update privacy notices if purposes change.

Categorize datasets by purpose to prevent misuse.

Data Minimization

Only collect the **minimum necessary data** to fulfill defined purposes.

Periodically review all data collection points for necessity.

Replace identifiable data with pseudonym or aggregated forms where possible.

Conduct **semi-annual data minimization audits**.

Accuracy

Personal data must remain accurate and current.

Provide mechanisms for individuals to correct or update their data (DSARs).

Perform **quarterly data quality reviews**.

Maintain audit logs for all rectification actions.

Storage Limitation

Data must not be retained longer than necessary.

Define and document **retention schedules** by category (e.g., HR, customer, finance).

Automate secure deletion or archival of expired data.

Apply **secure disposal standards (NIST 800-88)** for all deletions.

Integrity and Confidentiality (Security)

Ensure personal data is protected against unauthorized access, loss, or damage.

Enforce **encryption** at rest and in transit.

Use **Role-Based Access Controls (RBAC)** and **Multi-Factor Authentication (MFA)**.

Perform **regular security audits** and access reviews.

Secure all backups and restrict access to authorized personnel only.

Accountability

DELAP WARES INC. shall demonstrate compliance through proactive governance.

Appoint a qualified **Data Protection Officer (DPO)**.

Maintain comprehensive **ROPA, DPIAs, and audit reports**.

Conduct annual **GDPR training** for all employees.

Document all risk assessments and mitigation actions.

3. Data Subject Rights

DELAP WARES INC. upholds all GDPR data subject rights (Articles 12–23):

Right of Access (DSARs) – Respond within one month.

Right to Erasure ("Right to be Forgotten") – Erase personal data upon valid request.

Right to Data Portability – Provide data in machine-readable format.

Right to Rectification – Correct inaccurate or incomplete information promptly.

Right to Restrict or Object – Respect valid objections to processing.

Requests may be submitted via: **privacy@delapwares.com**

4. Data Security Measures

Encrypt all data at rest and in transit using industry standards (AES-256, TLS 1.3).

Enforce **Role-Based Access Controls (RBAC)** across systems.

Implement **Multi-Factor Authentication (MFA)** for administrative accounts.

Perform **regular vulnerability scans and penetration testing**.

Maintain **24/7 monitoring and incident response capability**.

5. Breach Notification Procedure

Immediate reporting of any suspected breach to the DPO.

Notify the relevant **Supervisory Authority within 72 hours** of discovery.

Inform affected individuals if there is a **high risk to their rights or freedoms**.

Document every breach, its impact, and mitigation actions in the **Breach Register**.

6. Third-Party Data Processors

All vendors must sign **Data Processing Agreements (DPAs)** compliant with GDPR.

Sub-processors require **written authorization** from DELAP WARES INC.

Conduct **annual vendor compliance assessments** and audits.

Ensure data transfers outside the EEA comply with **adequacy decisions or SCCs**.

7. Employee Responsibilities

Complete **mandatory GDPR training** annually.

Report **any suspected data incident** to the DPO immediately.

Avoid sharing or transferring data without explicit authorization.

Understand that **non-compliance** may result in disciplinary or legal consequences.

8. Policy Review & Enforcement

Policy reviewed **annually** or upon significant legal/regulatory changes.

Compliance monitored by the **Data Protection Officer** and **Internal Audit Team**.

Violations are subject to disciplinary action and may lead to escalation to authorities.

9. Contact Information

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